

Court No. - 80

Case :- APPLICATION U/S 482 No. - 26571 of 2024

Applicant :- Sunil Pandey

Opposite Party :- State Of U.P. And 2 Others

Counsel for Applicant :- Kshitij Tiwari

Counsel for Opposite Party :- G.A.

Hon'ble Vinod Diwakar,J.

1. Heard learned counsel for the applicant, learned counsel for the Electricity Department, learned A.G.A. for the State and perused material on record.

2. The instant application u/s 482 Cr.P.C. has been filed with the prayer to quash the first information report dated 31.07.2021, charge-sheet dated 30.1.2023, cognizance/summoning order dated 23.02.2023 as well as entire proceedings of Criminal Electricity Case No. 181 of 2023, titled as State v. Sunil Pandey, arising out of Case Crime No. 793 of 2021, under Section 135 of Indian Electricity (Amendment) Act, 2003, P.S. Anti Power Theft Chandauli, District Chandauli, pending in the court of learned Additional District and Sessions Judge, Chandauli.

3. Learned counsel for the applicant submits that the matter pertains to electricity theft. The assessment order passed by the Electricity Department is not correct. Learned counsel further states that the department cannot charge for whole year even though the assessment was done for a month. The applicant has filed an objection before the Electricity Department, but the same has not been considered by the Electricity Department.

4. *Per-contra*, learned counsel for the Electricity Department states

that the subscriber does not want to pay the entire amount. He has not filed an application under Clause 6.8 of the Electricity Supply Code, 2005. The applicant has a remedy under this code for addressing his grievances.

5. In the instant matter, the submissions raised by learned counsel for the applicant call for determination on questions of fact which may be adequately adjudicated upon only by the trial court. Adjudication of questions of facts and appreciation of evidence or examining the reliability and credibility of the version, does not fall within the arena of jurisdiction under Section 482 Cr.P.C. In view of the material on record it can also not be held that the impugned criminal proceeding are manifestly attended with *mala fide* and maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

6. On perusal material placed on record, it is observed that on spot inspection, carried out by the Electricity Department, the applicant was found indulged in electricity theft and *prima-facie* ingredients of Section 135 of Electricity Act is made out on perusal of the contents of FIR and material placed on record, therefore, no case for quashing of impugned proceedings is made out.

7. The application u/s 482 Cr.P.C. is devoid of merit and it is accordingly ***dismissed***.

Order Date :- 23.8.2024

A. Tripathi

Justice Vinod Diwakar